

When the Law Says No, But Society Says Yes.

By Sruthy S Muraly

In conversation with the delegate of Bangladesh on child marriage, dowry, legal loopholes and the limits of cultural justification.



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Q1. There is high prevalence of early marriages among children in South Asia where according to UNFPA, around 47% of girls between 18-24 years have been married below age of 18. Why is the practice of early marriages very common in Bangladesh despite its continued commitment to end such practices?

A1. Bangladesh is well aware of the fact that child marriages pose a significant problem. According to UNICEF statistics, 51% of women in Bangladesh aged between 20 and 24 years have been married before reaching the age of 18. Nevertheless, there is no doubt about Bangladesh's successes in solving this problem, which can be clearly seen from the drop of almost half from the initial number in 1970 of those marrying before turning 18.

Q2. Bangladesh's Child Marriage Restraint Act 2017 states that the minimum age of marriage for women is 18; however, Section 19 states that marriage can be performed below the stated age in "*special circumstances*" with the consent of parents and permission from the court. If child marriage is considered a harmful custom, why is there an exception to it in the law itself?

A2. Bangladesh recognizes that the special circumstances provision has generated legitimate international concern. Bangladesh's position is that preventing child marriage requires stronger safeguards, registration and enforcement, while addressing the poverty, insecurity and social pressures that drive families toward early marriage

Follow-up:

If the purpose is to protect the child, why does the provision rely on parental and judicial approval without expressly requiring the child's own consent? Does that not allow the very

family or social pressures behind child marriage to determine what is supposedly in the girl's "*best interests*"?

Bangladesh recognises the need for more safeguards in relation to Section 19. Nonetheless, it should be noted that Section 19 does not permit parents to unilaterally organise the marriage of a child. Rather, it mandates certain special circumstances, consideration by the Assessment Committee, consent of the parent or guardian, and finally, an order of the court in the best interest of the child. Moreover, the 2018 Rules specifically prohibit forced marriage and marriage to a rapist in the list of the special circumstances which can be recommended. Thus, Bangladesh realises the concern of obtaining the express consent of the child.

Q3. The 2024 Violence Against Women Survey in Bangladesh discovered that young married girls ages 15 to 19 years old are exposed to much more intimate partner violence (IPV), with 62% experiencing IPV in the last year. Given this connection between marriage at an early age and violence against girls, how does Bangladesh justify its support of underage marriage laws?

A3. Bangladesh does not dispute the evidence; the 2024 national Violence Against Women Survey actually demonstrates why stronger protection is necessary. The survey found that girls aged 15–19 were the most vulnerable group, with over 62% experiencing intimate-partner violence in the previous year. Bangladesh's position is therefore not that underage marriage should be encouraged, but that the exceptional provision must never become a pathway for coerced marriage. We support strengthening judicial scrutiny, requiring the child's views to be heard, and ensuring that exceptional authorization remains truly exceptional.”

Q4. The same national survey found that dowry is a significant factor of women's risk in intimate-partner violence, where at least 76% of the have experienced at least one form of IPV in their lifetime Bangladesh has laws against dowry, yet the practice continues to affect women's safety. Does this suggest that criminalisation alone has failed to change the cultural and social norms sustaining harmful practices?

A4. The 2024 VAW Survey actually shows a decline in recent IPV from 66% in 2015 to 49% in 2024. However, the continued association between dowry and violence demonstrates that criminalisation alone cannot dismantle the social norms sustaining the practice. Bangladesh therefore supports a dual approach: strong legal enforcement against dowry alongside community-level norm change, women's economic empowerment and awareness of legal rights. The objective is not simply to punish dowry, but to make the social and economic conditions sustaining it less viable.

Q5. Bangladesh frequently recognises that harmful practices are rooted in social norms rather than law alone. At what point should the state stop treating practices such as child marriage and dowry as matters requiring gradual cultural change and instead treat them as direct violations of women's autonomy that cannot be justified by tradition, family pressure or economic necessity?

A5. It is obvious for Bangladesh, as tradition can be used as an explanation for perpetuation, not as a justification for a human right violation. At the point when the practice becomes coercive, violent, exploitative or deprives a person of his/her rights and legal autonomy, the intervention by the State is necessary. In case of child marriages and dowry practices in Bangladesh, there should be a two-pronged approach towards their elimination: while the legal and criminal framework needs to set a clear line of acceptability, community discourse and socio-economic empowerment should tackle the underlying conditions for the perpetuation of the practice.